

10.	A. vs. Beachside Recovery LLC 25-01534963	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint 3. Order to Show Cause re: Dismissal (Failure to Serve) 4. Case Management Conference OFF CALENDAR
11.	TVI, INC vs. Rojas 26-01557985	Motion to Consolidate WITHDRAWN
12.	Kennedy vs. Emanuel 22-01248389	Motion for Bifurcation Defendants Glenn Emanuel, Diane Emanuel, Outdoor Associates LLC, 605 Investments LLC, Evergreen Media LLC, Glenn Emanuel, as Trustee for the Emanuel Family Trust, and Diane Emanuel as Trustee for the Emanuel Family Trust's Motion for bifurcation is GRANTED in PART. (Civ. Code §3295, subd. (d).) The court will bifurcate and preclude evidence of Defendants' wealth and profits or financial condition only until after a trial during the liability phase of trial. Evidence of liability, compensatory damages, malice, oppression, or fraud entitling punitive damages relief will be allowed during the liability phase of trial. Civil Code section 3295(d) provides in relevant part, "The court shall, on application of any defendant, preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294." "The purpose behind Civil Code section 3295, which allows bifurcation and preclusion of evidence of a defendant's wealth and profits during the liability phase of trial, is to minimize prejudice prior to the jury's determination of a prima facie case of liability for punitive damages. [citation omitted] However, such evidence is not to be excluded on the basis of prejudice when the information is relevant to liability." (<i>Notrica v. State Compensation Ins. Fund</i> (1999) 70 Cal.App.4th 911, 940.)